

SENATE No. 2517

The Commonwealth of Massachusetts

PRESENTED BY:

Kelly A. Dooner

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act dissolving the North Carver water district.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Kelly A. Dooner</i>	<i>Third Bristol and Plymouth</i>	
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>6/4/2025</i>

SENATE No. 2517

By Mrs. Dooner, a petition (accompanied by bill, Senate, No. 2517) of Kelly A. Dooner (by vote of the town) for legislation to dissolve the North Carver water district. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act dissolving the North Carver water district.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The North Carver Water District, established by Chapter 124 of the Acts of
2 2008, as amended by Chapter 172 of the Acts of 2010, is hereby dissolved and shall not be
3 continued as a body corporate after the effective date of this act. No approval from the
4 department of environmental protection or any other state agency shall be necessary to effect the
5 same.

6 SECTION 2. Notwithstanding any general or special law to the contrary, without further
7 conveyance or other act, all the assets, liabilities, obligations and indebtedness as well as the
8 powers and duties of the North Carver Water District, including but not limited to those
9 enumerated in Chapter 124 of the Acts of 2008, as amended by Chapter 172 of the Acts of 2010,
10 are transferred to the town of Carver and the town of Carver shall have the authority to supply
11 the area formerly defined as the district service area with water for the extinguishment of fires
12 and for domestic and other purposes, with power to establish fountains and hydrants and to

13 relocate and discontinue the same, to regulate the use of such water and to fix and collect rates to
14 be paid therefor, and for the purposes of assessing and raising taxes for the payment of such
15 services, and for defraying the necessary expenses of operating a public water supply, subject to
16 all general or special laws now or hereafter in force relating to municipal water supplies, except
17 as otherwise provided in this act.

18 SECTION 3. All members of the North Carver Water District commission serving prior
19 to the effective date of this act shall immediately transfer all files, legal and financial records or
20 other materials belonging to the North Carver Water District to the town of Carver, acting
21 through its select board. Such files, records and materials shall include any such items held by its
22 superintendent, consultants or legal counsel, without reservation.

23 SECTION 4. Upon the effective date of this act, the positions North Carver Water
24 District commissioners and superintendent shall be abolished and the terms of any incumbents
25 thereof terminated. The powers, duties and responsibilities of the commission and superintendent
26 shall pass to the select board and director of operations, respectively, who shall exercise
27 authority and operation of the waterworks system in accordance with this act and all general and
28 special laws now or hereafter in force relating to municipal water supplies.

29 SECTION 6. This act shall take effect upon its passage.